

		The phrase "under construction" within the insurance context has already been interpreted by the California Supreme Court in <i>TRB Investments, Inc. v. Fireman's Fund Ins. Co.</i> (2006) 40 Cal.4th 19. The property was not under construction at the time either fire was started. In response to Defendant's special interrogatory requesting all facts regarding Plaintiff's contention the property was "in the course of construction," Plaintiff failed to identify any acts which could constitute construction as defined in TRB. (Picker Decl., Ex. F., No. 1.) Plaintiff contacted contractors, took measurements, assessed costs and received estimates, and inspected the property. (Picker Decl., Ex. F., No. 1.) Thus, the burden shifts to Plaintiff to prove there is an issue of material fact regarding whether the property was under construction and, thus, covered by the Policy on the dates of the fires. Plaintiff has failed to meet its burden of showing there is a dispute of material fact. Defendant shall give notice.
2	Capital Resource Int'l v. Eplex, Inc. 2025-01533010 Motion to Set Aside/vacate Default Judgment	Defendants Eplex, Inc. and Sunhwa Lee's Motion to Set Aside Default and Default Judgment is GRANTED in part and DENIED in part. The Motion is GRANTED regarding Defendant Lee and DENIED as to Defendant Eplex, Inc. The Court finds the failure to timely file an answer and thus Defendant Lee's default and default judgment resulted from excusable neglect. "Within the context of Code of Civil Procedure section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929.) As an initial matter, Defendant Lee filed this motion on behalf of both defendants. However, except in a small claims proceeding, a corporation cannot represent itself. (<i>Merco Const. Engineers, Inc. v. Mun.Ct. (Sully-Miller Contracting Co.)</i> (1978) 21 Cal.3d 724, 731.) Nor can a non-lawyer representative of the corporation appear on the corporation's behalf as it would be tantamount to the unlicensed practice of law. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284, fn. 5.). Thus, the motion is DENIED as to Defendant Eplex. Defendant Sunhwa Lee is ordered to file an answer (on Lee's behalf) within 10 days.

4	Ghadiri v. Adam 2025-01481407 Leave to Amend DENIED.	Plaintiff, Adam Ghadiri's Motion for Leave to Amend is DENIED. Defendant's requests for judicial notice are granted as records of this Court. (Evid. Code, § 452(d).) Defendant's counsel is reminded Code Civ. Proc., § 1010.6(c)(1) [requires express consent for electronic service of unrepresented parties]. The Court has already determined the causes of action are beyond the statute of limitations. Plaintiff's proposed amendment contains the same fatal defect within the original complaint. Exhibit B to the proposed amendment is an email from June 5, 2021 acknowledging that Plaintiff was aware of the alleged facts giving rise to the fraud claim. Thus, the delayed discovery rule could only delay accrual of the statute of limitations until June 5, 2021. Plaintiff's 3rd and 4th causes of action for violation of Civil Code § 1102 and 2079 are similarly barred by the statute of limitations. Therefore, Plaintiff is denied leave to amend. Plaintiff shall give notice.
5	Hull v. Knickerbocker Prop. Inc., XL 2025-01493736 Strike Portions of First Amended Complaint	The motion of Defendants Sentinel Real Estate Corporation and Knickerbocker Properties, Inc. XL to strike portions of the first amended complaint of Plaintiffs Michael Hull and Paige Meskimen is GRANTED with 30 days' leave to amend. If plaintiffs choose to amend, they should specify the causes of action for which punitive damages are sought as well as the specific conduct supporting that request. According to <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, subdivision (a) of Civil Code section 3294, authorizes an award of punitive damages in noncontract actions where it is proven by clear and convincing evidence that the defendant has been guilty of oppression or malice. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Ibid. As amended in 1987, malice based upon a conscious disregard of the plaintiff's rights requires proof that the defendant's conduct is "despicable" and "willful." <i>Lackner v. North</i>, supra, 135 Cal.App.4th at p. 1211. The 1987 amendment also increased the burden of proof so that malice or oppression must be established by clear and convincing evidence. Ibid. Plaintiffs have not clearly identified the conduct that purportedly justifies an award of punitive damages. Nor have they identified the cause or causes of action for which such